IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD

COURT - 2

ITEM No302

CP(CAA)/59(AHM)2022

in

CA(CAA)/22(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

SMP Constructions Pvt Ltd **.....Applicant**

SMP Infrastructure Pvt Ltd

.....Respondent

Order delivered on 11/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
(COURT NO. II)

CP (CAA) 59/AHM/2022
IN
CA (CAA) 22/AHM/2022

[Sections 230-232 and read with other relevant provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamation) Rules, 2016]

In the Matter of Scheme of Arrangement
In the Nature of Demerger

OF

SMP Constructions Private Limited
(Petitioner Company No. 1/ Demerged Company)

AND

SMP Infrastructure Private Limited
(Petitioner Company No. 2/ Resulting Company)

AND

Their Respective Shareholders and Creditors

Order Pronounced on: 11/07/2023

Coram:
SHAMMI KHAN,
HON'BLE MEMBER (JUDICIAL)

AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

In the matter of:

SMP Constructions Private Limited
(CIN: U45201GJ2002PTC041739)
Registered office at;
P-156, Phase-II, GIDC Industrial Estate,
Behind MIPCO, Bholav, Bharuch-392015, Gujarat.

…Petitioner Company No. 1/
Demerged Company

AND

SMP Infrastructure Private Limited
(CIN: U45309GJ2021PTC123326)
Registered office at;
29, Bhrugupur Society, Kasak,
Maktampur, Taluka Bharuch-392001, Gujarat.

… Petitioner Company No. 2/
Resulting Company No.1

APPERANCE:

For the Petitioners : Mr. Dhinal Shah, Advocate
For the Regional Director : Mr. B Rama Ambedkar, Assistant Director

O R D E R

1. The present joint Application is filed under Section 230-232 with other relevant provisions of the Companies Act, 2013 (hereinafter referred to as "the Act") and read with the Companies (Compromise, Arrangement, and Amalgamations) Rules, 2016 for sanctioning Scheme of Arrangement of **SMP Constructions Private Limited** (hereinafter referred as 'Demerged Company' or 'SMPCPL') and **SMP Infrastructure Private Limited**

(hereinafter referred as 'Resulting Company' or 'SMPIPL') and their respective Shareholders and Creditors with effect from the Appointed Date on the agreed terms and conditions as set out in the Scheme annexed in accordance with Sections 230 to 232 of the Companies Act, 2013 with effect from the 01/04/2022 being the Appointed Date as mentioned in the Scheme.

2. From the records, it is seen that the first motion application was filed seeking directions for dispensation of the meeting of the Equity Shareholders of both the Petitioner Companies and seeking directions for holding/convening the meetings of Secured and Unsecured Creditors of the Demerged Company. There are no Secured and Unsecured Creditors of the Resulting Company, hence, the question of holding the meeting of creditors did not arise. The application was allowed vide order dated 30.06.2022.

3. The Petitioner Companies have filed 2nd motion joint petition before this Tribunal on 29.08.2022, after filing of this petition the Petitioner Companies filed an IA 78 of 2022, seeking condonation of two days delay in filing second motion petition. The said IA was allowed and delay of two days was condoned vide order dated 19.12.2022 and the joint petition was admitted, issuing notices to the concerned Regulatory Authorities and also directing publication in the area of registered office of the respective Petitioner Companies

in the newspapers "Times of India" (English Language-Ahmedabad Edition) and "Gujarat Samachar" (Gujarati Language-Gujarat Edition). Both Petitioner Companies have filed respective compliance affidavits.

4. The Regional Director, North Western Region, MCA has filed common report on 31.10.2022 along with the report of RoC, Ahmedabad. They have sought following directions:

i) The compliance of Section 61 of the Companies Act, 2013 and also as to the payment of stamp duty, registration fees etc. and filing of the relevant e-form with respective Registrar of the Companies.

ii) The compliance of section 2 (19AA) of the Income Tax Act.

iii) As per Para 2(f), the Petitioner Companies to submit the complete list and full details of assets and liabilities which are proposed to be transferred to the Resulting Company in the Scheme.

iv) As per para 2(h) of the ROC report following observation/violations/non-compliance of the Companies Act, 2013 in respect of demerged company were reported as under:

a) The Company has reported non-compliance of Section 185, 186 and 135 of the Companies Act, 2013 for the F.Y. 2018-19, 2019-20 & 2020-21 as the case may be.

b) The profit and loss account filed under MCA 21 portal by the demerged company for the year ended 31.03.2017, that profit of the company was Rs.7,32,57,389.00/- during the year, and thus, the company was eligible company qualifying under Section 135 of the Companies Act, 2013 and fell under the ambit of Section 135(1) of the Companies Act, 2013 for undertaking corporate social responsibility (CSR) activities. However, the demerged company in the form AOC-4 has mention that CSR is not applicable to the company for the F.Y. 2017-18 & 2018-19. In the Board's Report for the aforesaid F.Y. of the demerged company, the director neither reported that company is in process to form CSR committee and finding the better alternative to carry out CSR activity (2017-18) nor reported that CSR was not applicable to the company during the Year 2018-19.

c) In the last three years Financial Statements filed by demerged company, the company has not mentioned DIN therein, in accordance with the Section 158 of the Companies Act, 2013.

v) The petitioner companies to pay such amount of legal fees/cost to the Central Government which may be considered appropriate by this Hon'ble Tribunal.

vi) Payment of necessary stamp duty on transfer of property/assets to be paid to the respective authorities before implementation of the scheme.

5. The Petitioner Companies have filed a common affidavit in reply to the observations of Regional Director and RoC on 14.02.2023 and stated as follows:

i) Under clause 13(e) of the Proposed scheme, whereupon the scheme become effective, the resulting company may increase/modify its share capital, if necessary, to facilitate allotment of its new shares to the shareholder of the demerged company. The authorised share capital of the resulting company post sanctioning of the scheme will be Rs.20,50,00,000/- divided into 2,05,00,000/- equity shares of Rs.10 pursuant of clause V of the memorandum of association of the resulting company.

ii) The Petitioner Companies undertake to compliance of provisions of Section 2(19AA) of the Income Tax Act.

iii) In reply of Para 2(f), the Petitioner Companies filed the list and full details of the assets and liabilities proposed to be transferred to the resulting company is annexed with the reply.

iv) With regards to the observations referred to under Para 2(h) of the Report, the demerged company has taken up the matter with the concerned Registrar of Companies, Gujarat and the same will be

dealt as per the law. The Petitioner Companies affirmed that they shall be bound by the decision of the RoC/RD in accordance with the prescribed law.

v) The Petitioner Companies have filed their detailed reply vide letter dated 05.09.2022 and the same deals with the report of the RD. The Petitioner Companies affirm the contents of the letter and state that the same may be understood as part of the present affidavit. Copy of the letter dated 05.02.2022 was annexed with this reply.

6. The Income Tax Department filed its report on 13.12.2022, for the Petitioner Companies and submitted as follows:

i) For the demerged company:

Sr. No.	Particular	Remarks of AO
1.	Outstanding dues	There is outstanding demand of Rs. 13,104/- for A.Y. 2019-20 under Section 234D of the Income Tax Act, 1961.
2.	Pending Proceedings	No Proceeding is pending as on date.

ii) The resulting company has filed return of Income for A.Y. 2022-23 only which has been processed by CPC with no demand. It is further submitted that as per the system, no other demand is outstanding. Further, no proceedings are under process and no objection is seen from the record.

7. As recorded in the daily order dated 24.04.2023, Ld. Counsel for the Income Tax Department stated that there is demand of Rs. 13,104/- in the case of demerged company and NIL demand in the case of resulting company. She stated that since both the companies will survive and have undertaken to pay demand as per law, the Income Tax Department has no objection if the scheme is approved.

8. It is recorded in the daily order dated 12.05.2023 that Mr. B. Rama Ambedkar, Assistant Director of the RD appeared and stated that they have received reply of both the Petitioner Companies against their report. He stated that subject to the compliances committed in the reply, they have no objection if the scheme is approved.

9. The Petitioner Companies have filed their Unaudited Financial Statement as on 31st March, 2022 which is placed on record.

10. Heard submissions and perused documents placed on record. Considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and satisfaction accorded by the respective regulatory authorities, in view of the petitioner companies having filed undertaking to comply with the requirements raised by the respective regulators, we sanction the Scheme under Section 230-232 of the Companies Act, 2013 as annexed at annexure A. The Petitioners shall

however remain bound to comply with the statutory requirements in accordance with the respective laws.

11. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

12. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

13. **The Scheme is sanctioned with following directions:-**

i. The Demerged undertaking shall, together with all its property, rights and powers be transferred without further act or deed to

the Resulting Company and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Resulting Company for all the estate and interest of the Demerged Undertaking.

ii. All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Demerged Undertaking of the Demerged Company shall stand transferred to and vested in the Resulting Company, without any further act or deed. The Resulting Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Resulting Company.

iii. All the liabilities and duties of the Demerged Undertaking of the Demerged Company be transferred, without further act or deed, to the Resulting Company and accordingly the same shall pursuant to Sections 230 & 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Resulting Company.

iv. All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Demerged Undertaking of the Demerged Company, shall stand

transferred to and vested in the Resulting Company and be in full force and effect in favour of the Resulting Company and may be enforced by or against it as fully and effectually against the Resulting Company.

v. All taxes paid or payable by the Demerged Undertaking of the Demerged Company including existing and future incentives, un-availed credits and exemptions, benefit of carried forward losses and other statutory benefits, shall be available to and vest in the Resulting Company.

vi. All proceedings now pending by or against the Demerged Undertaking of the Demerged Company shall be continued by or against the Resulting Company.

vii. All employees in the service of the Demerged Undertaking of the Demerged Company shall be deemed to have become the employees and the staff of the Resulting Company on date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on term and conditions no less favourable than those on which they were / are engaged, as on the Effective Date.

viii. Consideration:

13(a). Upon the effectiveness, in consideration of the demerger, the transfer and vesting of the demerged undertaking in the resulting company pursuant to this scheme, the resulting company shall, without any further act or deed, issue and allot equity shares in the resulting company to each equity shareholder of the demerged company whose name is recorded in the register of the members of the demerged company on the record date or to their respective heir, executors, administrators or other legal representatives or the successors-in-title as the case may be, in the following ratio (the "Share Entitlement Ratio"):

"271 (Two Hundred and Seventy One) share of Resulting Company of INR 10/- each fully paid up for every 1 (one) equity share of the Demerged Company of INR 10/- each fully paid up" ('New Equity Shares') and

The New Equity Shares to be issued pursuant to the clause 13 (a) are collectively referred as New Shares.

ix. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

x. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xi. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue the certified copy of this order along with the Scheme immediately.

xii. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its

way for the appropriate course of action as per law for the tax liabilities, if any

xiii. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

14. The Company Petition CP (CAA) No. 59 of 2022 connected with CA (CAA) No. 22 of 2022 is allowed and disposed of, in terms of above order.

-Sd-
AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)

Swetambary-Steno
Abhishek Singh-LRA

Annexure "A"

ANNEXURE-F

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SCHEME OF ARRANGEMENT

BETWEEN

SMP CONSTRUCTIONS PRIVATE LIMITED

(SMPCPL OR DEMERGED COMPANY)

AND

SMP INFRASTRICTURE PRIVATE LIMITED

(SMPIPL OR RESULTING COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

UNDER SECTIONS 230 TO 232 OF THE COMPANIES ACT, 2013 AND

OTHER APPLICABLE PROVISONS OF THE COMPANIES ACT, 2013 AND

RULES FRAMED THEREUNDER

For Smp Infrastructure Pvt. Ltd.
Director

Smp Constructions Pvt. Ltd.
Director

A. PREAMBLE

This Scheme of Arrangement ("Scheme") is presented under Sections 230 to 232and other applicable provisions of the Companies Act, 2013 and the rules and regulations made thereunder, for the demerger of the Industrial Construction Business Undertaking ('Demerged Undertaking')of SMP Constructions Private Limited(**"SMPCPL" or "Demerged Company"**) to SMP Infrastructure Private Limited(**"SMPIPL"** or **"Resulting Company"**).

B. DESCRIPTION OF COMPANIES

I. **SMP Constructions Private Limited ("SMPCPL" or "Demerged Company")** is a private company incorporated under the provisions of Companies Act, 1956 having its registered office situated at P - 156, Phase-II, GIDC Industrial Estate, Behind MIPCO, Bholav, Bharuch - 392015,

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Gujarat. The Demerged Company is primarily engaged in the business of Industrial Construction, Wind Mill Foundation Construction and Generation of Wind Energy. The main object and incidental object as set out in the Memorandum of Association is as follows:

Main Object:

1. To carry on the business of and act as promoters, organizers, developers and agents of land, estate, property, industrial estate, housing schemes, shopping/office complexes, townships, warehousing, farms, farm-houses, holiday resorts, hotels, motels and to deal with purchase, sell, exchange, lease and to improve such properties either as owners and/or agents.
2. To carry on in India or elsewhere the business of construction and to act as builders, contractors or prefabricated concrete building and constructional works and contractors, decorators, architects, surveyors, designers, constructional engineers, sanitary and water engineers and plumbers and to erect, construct, re-construct, alter, improve, decorate, furnish and maintain houses, buildings of all descriptions, commercial centres, ships, hotels in connection with any buildings or building or schemes, roads, highways, docks, ships, tramways, bridges, canals, wells, sprints, dams, gardens, power plants, culverts, earthwork, channels, bowers, sewers, tanks, drains, wharfs, ports, reservoirs, sewages, embarkment, irrigations, reclamations, improvements, sanitations, hotels, clubs, tanks, schools, hospitals, restaurants, bath, places of worship, playgrounds, parks, libraries, reading rooms, vehicle stands, shops, carriages, dairy farms, or any other structural or architectural work of any kind whatsoever and for such purposes to prepare estimates, designs, plans, specifications, models, that may be required including preparations of layouts, develop, erect, demolish, re-erect, prepare, re-model, execute, undertake, carry out, run, establish, acquire, maintain, control, manage, take on lease, purchase or acquire any work in connection with the above.

For Smp Infrastructure Pvt. Ltd.
Director

For Smp Constructions Pvt. Ltd.
Director

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II. **SMP Infrastructure Private Limited ("SMPIPL" or "Resulting Company")** the Resulting Company is a company incorporated under the Companies Act, 2013, and has its registered office situated at 29, Bhrugupur Society, Kasak, Maktampur, Tal. Bharuch - 392001, Gujarat. The Resulting Company is primarily engaged inter-alia in business of Industrial and Allied Constructions. The main object as set out in the Memorandum of Association is as follows:

1. To carry on the business of and act as promoters, organizers, developers and agents of land, estate, property, industrial estate, housing schemes, shopping/office complexes, townships, warehousing, farms, farm-houses, holiday resorts, hotels, motels and to deal with purchase, sell, exchange, lease and to improve such properties either as owners and/or agents.
2. To carry on in India or elsewhere the business of construction and to act as builders, contractors or prefabricated concrete building and constructional works and contractors, decorators, architects, surveyors, designers, constructional engineers, sanitary and water engineers and plumbers and to erect, construct, re-construct, alter, improve, decorate, furnish and maintain houses, buildings of all descriptions, commercial centres, ships, hotels in connection with any buildings or building or schemes, roads, highways, docks, ships, tramways, bridges, canals, wells, sprints, dams, gardens, power plants, culverts, earthwork, channels, bowers, sewers, tanks, drains, wharfs, ports, reservoirs, sewages, embarkment, irrigations, reclamations, improvements, sanitations, hotels, clubs, tanks, schools, hospitals, restaurants, bath, places of worship, playgrounds, parks, libraries, reading rooms, vehicle stands, shops, carriages, dairy farms, or any other structural or architectural work of any kind whatsoever and for such purposes to prepare estimates, designs, plans, specifications, models, that may be required including preparations of layouts, develop, erect, demolish, re-erect, prepare, re-model, execute, undertake, carry out, run, establish,

Smp Constructions Pvt. Ltd.
Director

For Smp Infrastructure Pvt. Ltd.
Director

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acquire, maintain, control, manage, take on lease, purchase or acquire any work in connection with the above.

C. PRELIMINARY ASPECTS

I. This Scheme of arrangement, *inter alia*, provides for demerger of the Demerged Undertaking as defined hereinafter of the Demerged Company and transfer and vesting thereof into the Resulting Company, including consequential or related matters integrally connected therewith.

II. The Scheme does not affect the rights of the creditors of the Demerged Company and the Resulting Company. There will not be any reduction in amounts payable to the creditors of the Demerged Company and the Resulting Company post sanctioning of the Scheme. The Scheme would not adversely affect any security provided to the secured creditors of the Demerged Company.

III. The equity shareholders of the Demerged Company shall be allotted shares in the Resulting Company as per the exchange ratio stated in Clause 13.

D. PARTS OF THE SCHEME

This Scheme of Arrangement is divided into the following parts:

- **PART I** of the Scheme deals with the Definitions and Interpretations, and also sets out the share capital of all companies which are parties to the Scheme;
- **PART II** of the Scheme deals with demerger of the Demerged Undertaking (defined hereinafter) from the Demerged Company as going concern, vesting with the Resulting Company;
- **PART III** deals with general terms and conditions applicable to this compromise Scheme.

E. COMPLIANCE WITH TAX LAWS

This Scheme has been drawn up to comply with the conditions relating to

For Smp Infrastructure Pvt. Ltd.
Director

Smp Constructions Pvt. Ltd.
Director

"Demerger" as defined under Section 2(19AA), and other relevant sections of the Income Tax Act, 1961. If any terms or provisions of the Scheme are found to be or interpreted to be inconsistent with any of the said provisions at a later date whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provisions of the tax laws shall prevail. The Scheme shall then stand modified to the extent determined necessary to comply with the said provisions. Such modification will however not affect other parts of the Scheme. The power to make such amendments as may become necessary shall vest with the Board of Directors of the Demerged Company, which power can be exercised at any time and shall be exercised in the best interests of the company and their shareholders.

F. The arrangement under this Scheme will be effected under the provisions of Sections 230 to 232 and other applicable provisions of the Companies Act, 2013.

PART I

DEFINITIONS AND INTERPRETATIONS

1. DEFINITIONS

In this Scheme, unless repugnant to the subject or context or meaning thereof, the following expressions shall have the meanings as set out herein below:

a. **"Act"** means the Companies Act, 2013 and the Companies Act, 1956, to the extent of its provisions in force, and rules made thereunder, including any statutory modifications, re-enactments or amendments thereof for the time being in force as the case may be.

b. **"Appointed Date"** means 1st April 2022.

c. **"Applicable Law"** means any applicable statute, law, regulation, ordinance, rule, judgment, order, decree, clearance, approval, directive, guideline,

For Smp Infrastructure Pvt. Ltd. Director

Smp Constructions Pvt. Ltd. Director

requirement or any similar form of determination by or decision of any Appropriate Authority, that is binding or applicable to a Person, whether in effect as of the date of on which this Scheme has been approved by the Boards of Directors of the Companies or at any time thereafter;

d. **"Board of Directors" or "Board"** means the Board of Directors of the Demerged Company or the Resulting Company as the case may be.

e. **"Demerged Company"** or **"SMPCPL"** means SMP Constructions Private Limited bearing CIN U45201GJ2002PTC041739, a Company incorporated under the Companies Act, 1956, and having its registered office situated at 156, phase-ii, GIDC industrial estate, Behind MIPCO, Bholav, Bharuch - 392015, Gujarat.

f. **"Demerged Undertaking"** or **"Industrial Constructions Undertaking"** shall mean the entire Industrial Constructions division of the Demerged Company, comprising of all related assets, investments, properties, liabilities, rights, registration, approvals, powers and obligations of whatsoever nature and wheresoever situated, of the Demerged Company, on a going concern basis, as on the Appointed Date, belonging to, or forming part of, or relating or appertaining to, or attributable to the division identified as the Industrial Constructions business Undertaking of Demerged Company and shall include the following without limitation to the generality of the above:

i. The assets and properties, tangible or intangible, whether corporeal or incorporeal, leasehold or otherwise, capital work in progress, advances, deposits, sundry debtors, inventories, cash and bank balances, other fixed assets, development rights, loans, inventory and work in progress wherever situated pertaining to Industrial Constrictions Undertaking of the Demerged Company;

ii. Without prejudice to the provisions of sub-clause (a) above, the

For Smp Infrastructure Pvt. Ltd.
Director

Smp Constructions Pvt. Ltd.
Director

Industrial Constructions business of the Demerged Company shall include all the debts, liabilities, duties and obligations and also including, without limitation, all properties and assets in connection with or pertaining or relatable to Industrial Construction business of the Demerged Company such as goodwill, customer lists, customer connects, licenses, permits, quotas, registrations, agreements, contracts, arrangements, privileges or all other rights including tax deferrals, tax and other benefits, incentives, tenancy rights, if any, and all other rights, title, interests, copyrights, patents, trademarks, trade names and other industrial or intellectual property rights of any nature whatsoever, consent, approvals or powers of every kind, nature and description whatsoever in connection with or pertaining or relatable to the Industrial Construction business of the Demerged Company and all deposits and/or moneys paid or received by the Demerged Company in connection with or pertaining or relatable to the Industrial Construction business and all statutory licences, permissions, approvals or consents to carry on the operations of the Industrial Constructions business of the Demerged Company;

iii. the liabilities and obligations, whether present or future, whether secured or unsecured, of the Demerged Company pertaining to the Industrial Construction Undertaking of the Demerged Company means and includes:

i) all liabilities (including contingent liabilities) arising out of the activities or operation of the Industrial Constructions Undertaking of the Demerged Company including in relation or connection with taxes or under or in relation to its contracts, other obligations, duties and sums owing;

ii) specific loans and borrowings raised, if any, incurred and utilized solely for the activities or operations of the Industrial Construction

For Smp Infrastructure Pvt. Ltd.

Director

Smp Constructions Pvt. Ltd.

Director

Undertaking of the Demerged Company;

iii) liabilities other than those referred to in sub-clauses (i) and (ii) above being the amounts of general or multipurpose borrowings, if any, of the Demerged Company be allocated to the Industrial Construction Undertaking of the Demerged Company in the same proportion in which the value of the assets transferred under this Clause bears to the total value of the assets of the Demerged Company immediately before the Appointed Date of the Scheme.

iv. All employees of Demerged Company employed in and/or relatable to the Industrial Construction business of the Demerged Company as on the Effective Date;

v. All deposits and balances with government, semi government, local and other authorities, and bodies, customers and other persons, earnest moneys and/or security deposits paid or received by the Demerged Company directly or indirectly in connection with or relating to the Industrial Constructions business of the Demerged Company;

vi. All necessary books, records, files, papers, product specification, engineering and process information, records of standard operating procedures, computer programs along with their licenses, drawings, manuals, data, catalogues, quotations, sales and advertising materials, lists of present and former customers and suppliers, customer credit information, customer pricing information, and other records whether in physical or electronic form in connection with or relating to the Industrial Constructions business of the Demerged Company;

vii. Whether any particular asset or liability should be included as asset or liability of Industrial Construction Undertaking or otherwise shall be decided mutually by the Board of Directors of the Demerged Company and the Resulting Company.

For Smp Infrastructure Pvt. Ltd.
Director

Smp Constructions Pvt. Ltd.
Director

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g. **"Demerger"** means transfer and vesting of Demerged Undertaking on a going concern basis from the Demerged Company to the Resulting Company in terms of Section 2(19AA) of the Income Tax Act, 1961.

h. **"Effective Date"** means the last of the dates on which the certified copy of the order sanctioning this Scheme, passed by the National Company Law Tribunal at Ahmedabad, are filed with the Registrar of Companies, Ahmedabad by the Demerged Company and the Resulting Company collectively.

i. **"Governmental Authority"** or **"Appropriate Authority"** means any applicable central, state or local government, legislative body, regulatory or administrative authority, agency or commission or any court, tribunal, board, bureau, instrumentality, judicial or arbitral body having jurisdiction over the territory of India.

j. **"Income Tax Act"** means the Income Tax Act, 1961, including any amendments made therein or statutory modifications or re-enactments thereof for the time being in force.

k. **"National Company Law Tribunal"** or **"NCLT"** or **"Tribunal"** means National Company Law Tribunal, Ahmedabad bench having jurisdiction over the Demerged Company and the Resulting Company as constituted by the Central Government under the Act for approving any scheme of arrangement, compromise or reconstruction of companies under sections 230 to 232of the Companies Act, 2013, and shall include, if applicable, such other forum or authority as may be vested with the powers of a Tribunal for the purposes of Sections 230 to 232read with of the Companies Act, 2013.

l. **"Record Date"** means the date to be fixed by the Board of Directors of the Demerged Company, in consultation with the Resulting Company, for the purpose of determining the members of the Demerged Company to whom

For Smp Infrastructure Pvt. Ltd.
Director

Smp Constructions Pvt. Ltd.
Director

new shares in the Resulting Company will be allotted under the Scheme.

m. **"Registrar of Companies"** means the Registrar of Companies, at Ahmedabad having jurisdiction over the Companies.

n. **"Remaining Business"** or **"Remaining Business of SMPCPL"** shall mean all undertakings, businesses, activities and operations including assets and liabilities of SMPCPL other than the Industrial Construction Undertaking.

o. **"Resulting Company"** or **"SMPIPL"** means **SMP Infrastructure Private Limited** bearing CIN U45309GJ2021PTC123326, a Company incorporated under the Companies Act, 2013 and having its registered office situated at29, Bhrugupur Society, Kasak, Maktampur, Tal. Bharuch - 392001, Gujarat.

p. **"Scheme"** means this Scheme of Arrangement between SMP Constructions Private Limited ("SMPCPL" or "Demerged Company") and SMP Infrastructure Private Limited ("SMPIPL" or "Resulting Company"), in its present form and / or with any modifications and amendments thereto made under Clause 17of this scheme as approved or directed by the Tribunal.

q. **"Transition period"** means period starting from the date immediately after the Appointed Date till the last of the date on which all the conditions stipulated in Clause18of this Scheme are fulfilled.

2. INTERPRETATIONS

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Companies Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory

For Smp Infrastructure Pvt. Ltd.
Director

Smp Constructions Pvt. Ltd.
Director

modification or re-enactment thereof from time to time.

In this Scheme, unless the context otherwise requires:

a. The words "including", "include" or "includes" shall be interpreted in a manner as though the words "without limitation" immediately followed the same;

b. Any document or agreement includes a reference to that document or agreement as varied, amended, supplemented, substituted, novated or assigned, from time to time, in accordance with the provisions of such document or agreement;

c. The words "other", "or otherwise" and "whatsoever" shall not be construed *ejusdem generis* or be construed as any limitation upon the generality of any preceding words or matters specifically referred to;

d. The headings are inserted for ease of reference only and shall not affect the construction or interpretation of the relevant provisions of the Scheme;

e. The term "clause" or "sub-clause" refers to the specified clause of this Scheme, as the case may be;

f. Reference to any legislation, statute, regulation, rule, notification or any other provision of law means and includes references to such legal provisions as amended, supplemented or re-enacted from time to time, and any reference to legislation or statute includes any subordinate legislation made from time to time under such a legislation or statute and regulations, rules, notifications or circulars issued under such a legislation or statute;

g. Words in the singular shall include the plural and vice versa.

3. DATE OF TAKING EFFECT AND OPERATIVE DATE

This Scheme set out herein in its present form or with any modification(s) and amendment(s) made under Clause17 of this Scheme duly approved or imposed or directed by the Tribunal shall be effective from the Appointed

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Date. Therefore, for all regulatory and tax purposes, as applicable, the Demerger would have been deemed to be effective from the Appointed Date of this Scheme but shall be operative from the Effective Date.

4. SHARE CAPITAL

a. The share capital of the Demerged Company as per Audited Financials as on 31st day of March, 2021 is as under:

Particulars	**Amount (Rs.)**
Authorized capital	
Equity Shares: 1, 00, 000 Equity Shares of Rs. 10/- each	10, 00, 000/-
Total	**10, 00, 000/-**
Issued, subscribed and fully paid-up capital	
Equity Shares: 73, 300 Equity Shares of Rs. 10/- each	7, 33, 000/-
Total	**7, 33, 000/-**

Subsequent to 31st day of March, 2021and as on the date of approval of the Scheme by the Board of Directors of the Demerged Company, there is no change in the authorized, issued, subscribed and paid-up share capital of the Demerged Company.

b. The share capital of the Resulting Company as per Unaudited Financials as on 30th day of September, 2021 is as under:

Particulars	**Amount (Rs.)**
Authorised capital	
1, 00, 000Equity Shares of Rs.10/- each	**10, 00, 000/-**
Total	**10, 00, 000/-**
Issued, subscribed and fully paid-up Capital	
10, 000 Equity Shares of Rs.10/- each	**1, 00, 000/-**

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Total	**1, 00, 000/-**

Subsequent to 30th day of September, 2021and as on the date of approval of the Scheme by the Board of Directors of the Resulting Company, there is no change in the authorized, issued, subscribed and paid-up share capital of the Resulting Company.

5. OBJECTS/ RATIONALE OF THE SCHEME

a. Presently, Demerged Company has three separate businesses i.e. businesses of Wind Mills Foundation Construction, Wind Energy Generation and Industrial Constructions.

b. Demerged Company proposes to demerge its Industrial Constructions business into the Resulting Company. The transfer and vesting by way of a demerger shall achieve the following benefits for the Demerged Company and the Resulting Company:

- Each of the business activities carried out by the Demerged Company is distinct and diverse in its business characteristics;
- The business models and market of the Industrial Constructions business is at different stage of maturity with a different risk and return profile as well as capital and operational requirement when compared to Wind Mill Foundation Construction and Wind Energy Generation Operations Business. Accordingly, it is prudent to segregate the Industrial Constructions business into the Resulting Company to maximize the shareholder value. The segregation is expected to enable the Industrial Constructions business to be carried out with greater specialization and focus for sustained growth.
- The transfer and vesting of Industrial Constructions Undertaking into the Resulting Company would be in the best interests of the shareholders, creditors and the employees of the Demerged Company as it would result in enhanced value for shareholders and allow focused strategy in operation of the Industrial Constructions business and Wind

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Mill Foundation Construction and Wind Energy Generation Operations Business respectively.

PART II

TRANSFER OF THE DEMERGED UNDERTAKING FROM THE DEMERGED COMPANY AND VESTING WITH THE RESULTING COMPANY

6. TRANSFER AND VESTING OF DEMERGED UNDERTAKING INTO THE RESULTING COMPANY

Upon coming into effect of this Scheme and with effect from the Appointed Date and subject to the provisions of this Scheme, the Demerged Undertaking of the Demerged Company as defined in Clause herein above, shall pursuant to the provisions of section 232 read with section 230 and other applicable provisions, if any, of the Act, without any further act, instrument or deed, be transferred to and vested in or deemed to be transferred to and vested in the Resulting Company, as a going concern, in accordance with Section 2(19AA) of the Income-tax Act, 1961, so as to become the undertaking of the Resulting Company by virtue of and in the following manner:

a. All assets of the Demerged Company in relation to the Demerged Undertaking that are movable in nature and / or otherwise capable of transfer by physical or constructive delivery, novation and / or endorsement and delivery or by operation of law shall be vested in the Resulting Company. Upon this Scheme becoming effective, the title of such property shall be deemed to have been mutated and recognised as that of the Resulting Company, absolutely and forever.

b. In so far as the immovable property of the Demerged Undertaking are concerned, whether or not included in the books of Demerged Company, whether freehold or leasehold (including but not limited to land, buildings, sites, tenancy rights related thereto, and immovable properties and any other document of title, rights, interest and easements in relation thereto)

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of the Demerged Undertaking shall stand transferred to and be vested in the Resulting Company, without any act or deed to be done or executed by the Demerged Company and/or the Resulting Company. The mutation of title to the immovable properties in the name of Resulting Company shall be made and duly recorded by the appropriate authorities upon filing of true copies of the Order of the NCLT approving the scheme without any further act or deed on part of the Demerged Company or Resulting Company.

c. In respect of such of the assets of the Demerged Company in relation to the Demerged Undertaking other than those referred to above, outstanding loans and advances, if any, all kind of banking accounts including but not limited to current and savings account, term deposits, recoverable in cash or in kind or for value to be received, deposits, if any, with Governmental Authorities and other authorities and bodies, shall, without any further act, instrument or deed, be and stand transferred to and vested in the Resulting Company and / or deemed to be transferred to and vested in the Resulting Company from the Appointed Date upon effectiveness of the Scheme. Resulting Company shall upon sanction of the Scheme be entitled to the delivery and possession of all documents of title of such movable property in this regard.

d. All assets, rights, title, interest and investments of the Demerged Company in relation to the Demerged Undertaking shall also without any further act, instrument or deed stand transferred to and vested in and be deemed to have been transferred to and vested in the Resulting Company upon the coming into effect of this Scheme. Any asset acquired by the Demerged Company after the Appointed Date but prior to the Effective date pertaining to the Demerged Undertaking shall upon the coming into effect of this Scheme also without any further act, instrument or deed stand transferred to or vested in or deemed to have been transferred to or vested in the Resulting Company upon the coming into effect of this Scheme.

e. Upon the Scheme coming into effect, all debts (secured and unsecured),

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liabilities, duties and obligations of every kind, nature and description of the Demerged Company in relation the Demerged Undertaking shall without any further act, instrument or deed, be and stand transferred to or vested in and / or be deemed to have been and stand transferred to and vested in the Resulting Company so as to become on and from Appointed Date, the debts, liabilities, duties and obligations of the Resulting Company on the same terms and conditions as were applicable to the Demerged Company, and further that it shall not be necessary to obtain Consent of any Person who is a party to contract or arrangement by virtue of which such liabilities have arisen in order to give effect to the provisions of this Clause. Necessary modification, as may be required would be carried out to the debt instrument issued by the Demerged Company in relation to the Demerged Undertaking.

f. The transfer and vesting of the assets and liabilities of the Demerged Undertaking from the Demerged Company to the Resulting Company as aforesaid shall be subject to the existing security, charges, mortgages, if any, in respect of such assets of Demerged Undertaking whether in respect of loans and other liabilities of the Demerged Undertaking or the Remaining Business of the Demerged Company. Further, it is hereby clarified that in so far as the assets comprising the Remaining Business are concerned, the security, charges, mortgages if any, over such assets shall continue to operate over the assets of the Remaining Business of the Demerged Company.

Provided always that the Scheme shall not operate to enlarge the security for any loan, deposit or facility availed of by Demerged Company or the Resulting Company and that Demerged Company or the Resulting Company shall not be obliged to create any further or additional security thereof after the Effective Date or otherwise.

g. All Government approvals and other consents, quotas, rights, authorizations, entitlements, including those relating to tenancies, privileges, powers and facilities of every kind and description of whatsoever

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nature, to which the Demerged Company in relation to the Demerged Undertaking is a party or to the benefit of which the Demerged Company in relation to the Demerged Undertaking may be entitled to use or which may be required to carry on the operations of the Demerged Company in relation to the Demerged Undertaking, and which are subsisting or in effect immediately prior to the Effective Date, shall be, and remain, in full force and effect in favour of or against the Resulting Company and may be enforced as fully and effectually as if, instead of the Demerged Company, Resulting Company had been a party, a beneficiary or an obligee thereto and shall be appropriately mutated by the relevant Governmental Authorities in favour of the Resulting Company. In so far as the various incentives, benefits, subsidies (including applications for subsidies), rehabilitation schemes, grants, special status, rights and other benefits or privileges enjoyed, granted by any Governmental Authority or by any other Person, or availed of by the Demerged Company in relation to the Demerged Undertaking are concerned, if any, the same shall, without any further act or deed, vest with and be available to the Resulting Company on the same terms and conditions as are available to the Demerged Company in relation to the Demerged Undertaking.

h. All registrations, licenses, trademarks, copyrights, domain names, applications for copyrights, trade names, trademarks, etc. pertaining to the Demerged Company in relation to the Demerged Undertaking, if any, shall stand vested in the Resulting Company without any further act, instrument or deed upon the sanction of the Scheme and upon this Scheme becoming effective.

i. All taxes (including but not limited to advance tax, tax deducted at source, value added tax, sales tax, service tax, Good and Service Tax, etc.) payable by or refundable to the Demerged Company in relation to the Demerged Undertaking with effect from the Appointed Date, including all or any refunds or claims shall be treated as the tax liability or refunds/credits/claims, etc. as the case may be, of the Resulting Company,

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and any tax incentives, advantages, privileges, exemptions, rebates, service tax input credits, Goods and Service tax input credits, tax holidays, remissions, reductions and/or any other benefit, as would have been available to the Demerged Company in relation to the Demerged Undertaking, shall pursuant to the Scheme becoming effective, be available to the Resulting Company.

j. Any third party or Governmental Authority required to give effect to any provisions of this Scheme shall take on record the NCLT Orders sanctioning the Scheme on its file and duly record the necessary substitution or endorsement in the name of the Resulting Company as successor in interest, pursuant to the sanction of this Scheme by the NCLT, and upon this Scheme becoming effective. For this purpose, the Resulting Company shall file certified copies of such NCLT order, and to file appropriate applications or forms with relevant authorities concerned for statistical and information purposes, if required. Further, there shall be no break in the validity and enforceability of Governmental Approvals, Consents, quotas, rights, entitlements, licenses (including the licenses granted by any Governmental Authorities for the purpose of carrying on its business or in connection therewith), and certificates of every kind and description of whatsoever nature.

k. For the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon the coming into effect of this Scheme, all Consents, certificates, power of attorneys given by, issued to or in favour of the Demerged Company in relation to the Demerged Undertaking shall stand transferred to the Resulting Company, as if the same were originally given, by and issued to or executed in favour of the Resulting Company, and Resulting Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Resulting Company.

l. The Resulting Company shall, at any time after this Scheme coming into effect, in accordance with the provisions hereof, if so required under any

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Applicable Law or otherwise, execute appropriate deeds or confirmation or other writings or arrangement with any party to any contract or arrangement in relation to which the Demerged Company in relation to the Demerged Undertaking have been a party, including any filings with the regulatory authorities, in order to give formal effect to the other provisions. The Resulting Company shall for this purpose, under the provisions hereof, be deemed to have been authorized to execute any such writings on behalf of the Demerged Company in relation to the Demerged Undertaking and to carry out or perform all such formalities or compliances referred to above on the part of the Demerged Company in relation to the Demerged Undertaking.

m. For avoidance of doubt and without prejudice to the generality of any applicable provisions of this Scheme, it is clarified that in order to ensure (i)implementation of the provisions of the Scheme; (ii) uninterrupted transfer of relevant contracts, consents, patents, registrations, certificates, etc.; and (iii) continued vesting of the benefits, exemptions available to the Demerged Company in relation to the Demerged Undertaking in favour of the Resulting Company, the Board of directors of the Demerged Company and the Resulting Company shall be deemed to be authorized to execute or enter into necessary documentations with any regulatory authorities or third parties, if applicable and the same shall be considered as giving effect to the NCLT order and shall be considered as an integral part of this Scheme.

7. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

a. Upon the coming into effect of this Scheme and subject to the provisions of this Scheme, all contracts, deeds, bonds, agreements, schemes, insurance policies, indemnities, guarantees, arrangements and other instruments of whatsoever nature relating to the Demerged Undertaking and to which the Demerged Company is a party or to the benefit of which the Demerged Company may be eligible, and which are subsisting or have effect immediately before the Effective Date, shall

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continue in full force and effect on or against or in favour of, as the case may be, the Resulting Company and may be enforced as fully and effectually as if, instead of the Demerged Company, the Resulting Company had been a party or beneficiary or obligee thereto or there under.

b. The Resulting Company, at any time after the Scheme becoming effective in accordance with the provisions hereof, if so required under any law or otherwise, will execute deeds of confirmation or other writings or arrangements with any party to any contract or arrangement in relation to the Demerged Undertaking of the Demerged Company to which the Demerged Company is a party in order to give formal effect to the provisions of the Scheme. The Resulting Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Demerged Company and to carry out or perform all such formalities or compliances, referred to above, on behalf of the Demerged Company.

8. STAFF, WORKMEN & EMPLOYEES

a. Upon the Scheme coming into effect, all staff, workmen and employees of the Demerged Undertaking in service as at the Appointed Date shall be deemed to have become staff, workmen and employees of the Resulting Company with effect from the Appointed Date, without any break in their service and on the basis of continuity of service, and the terms and conditions of their employment with the Resulting Company shall not be less favourable than those applicable to them in the Demerged Company as at the Appointed Date. The Resulting Company further agrees that for the purpose of payment of any retirement benefit / compensation, such immediate uninterrupted past services with the Demerged Company shall also be taken into account.

b. The equitable interest in accounts/funds of the employees, staff and workmen whose services are vested with the Demerged Company, relating to superannuation, provident fund and gratuity fund shall be

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identified, determined and vested with the respective trusts/funds of the Resulting Company and such employees shall be deemed to have become members of such trusts/funds of the Resulting Company. Until such time, the Demerged Company may, subject to necessary approvals and permissions, if any, continue to make contributions pertaining to the employees of the Demerged Undertaking to the relevant funds of the Demerged Company.

c. Upon the Scheme becoming effective, Demerged Company will transfer/handover to Resulting Company, copies of employment information, including but not limited to, personnel files (including hiring documents, existing employment contracts, and documents reflecting changes in an employee's position, compensation, or benefits), payroll records, medical documents (including documents relating to past or ongoing leaves of absence, on the job injuries or illness, or fitness for work examinations), disciplinary records, supervisory files relating to its and all forms, notifications, orders and contribution/identity cards issued by the concerned authorities relating to benefits transferred pursuant to this sub-clause.

d. The contributions made under Applicable Law in connection with the employees of the Demerged Undertaking, to the provident fund, gratuity fund, superannuation fund, leave encashment and any other special scheme or benefits created, for the period after the Appointed Date shall be deemed to be contributions made by Resulting Company.

e. Resulting Company shall continue to abide by any agreement(s)/ settlement(s) entered into in respect to the employees of the Demerged Undertaking.

9. LEGAL PROCEEDINGS

a. All proceedings of whatsoever nature (legal, taxation and others, including any suits, appeals, arbitrations, execution proceedings, revisions, writ petitions, if any) whether civil or criminal (including before any statutory or quasi-judicial authority or tribunal) by or

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against the Demerged Company in relation to the Demerged Undertaking is pending, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of the Demerger of the Demerged Undertaking into the Resulting Company and by anything contained in this Scheme, but the said suit, appeal or other legal proceedings may be continued, prosecuted and enforced by or against the Resulting Company in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Demerged Company as if this Scheme had not been made.

b. After the Appointed Date, if any proceedings are taken against Demerged Company in respect of the matters pertaining to Demerged Undertaking, the Demerged Company shall defend the same in accordance with advise and instructions of Resulting Company as may be applicable, at the cost of Resulting Company, and Resulting Company shall reimburse and indemnify Demerged Company against all liabilities and obligations incurred by Demerged Company in respect thereof.

c. The Resulting Company undertakes to have all legal or other proceedings initiated by or against the Demerged Company in relation to the Demerged Undertaking referred above transferred into its name and to have the same continued, prosecuted and enforced by or against the Resulting Company to the exclusion of the Demerged Company as may be applicable.

10. TAXES

a. Any liabilities including all liabilities under the Income-tax Act, 1961, Good and Service Tax Laws, Excise Laws, Service Tax Laws, Central Sales Tax Laws, applicable State Value Added Tax Laws, or other applicable laws/ regulations (hereinafter in this Clause referred to as "Tax Laws") dealing with taxes/ duties/ levies allocable or related to the business of the Demerged Undertaking as on the date immediately preceding the Appointed Date shall be transferred to Resulting Company.

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b. All taxes (including but not limited to sales tax, value added tax, excise duty, customs duty, service tax or central goods and services tax, state goods and services tax, integrated goods and services tax, as applicable, cess, tax refunds) payable by or refundable relating to the Demerged Undertaking, including all or any tax refunds or tax liabilities or tax claims arising from pending tax proceedings, under any law, on or before the Effective Date, shall be treated as or deemed to be treated as the tax liability or tax refunds/ tax claims (whether or not recorded in the books relating to the Demerged Undertaking) of Resulting Company, and any unabsorbed tax losses and depreciation, MAT credit etc., as would have been available to Demerged Undertaking on or before the Effective Date, shall be available to Resulting Company upon the Scheme coming into effect.

c. Without prejudice to the generality of the above, all benefits including under the income tax, excise duty, service tax, applicable State Value Added Tax Laws, Goods & Service tax, etc., pertaining to the Demerged Undertaking to which the Demerged Company is entitled to in terms of the applicable Tax Laws of the Union and State Governments, shall be available to and vest in the Resulting Company.

d. The Resulting Company and the Demerged Company shall be entitled to file/ revise their respective financial statements, its income-tax returns, TDS certificates, TDS returns, central goods and services tax, state goods and services tax, integrated goods and services tax, service tax, professional tax or and other statutory returns, if required, and shall have the right to claim refunds, advance tax credits, credits of all taxes paid/ withheld, if any, tax losses and unabsorbed depreciation, claim for sum prescribed under Section 43B of the Income Tax Act on payment basis, claim for deduction of provisions written back by the Resulting Company previously disallowed in the hands of the Demerged Company pertaining to the Demerged Undertaking under the Income Tax Act, if any, pertaining to Demerged Undertaking as may be required

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consequent to implementation of this Scheme and where necessary to give effect to this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability on account of interest, penalty or any other sum. The Resulting Company shall have the right to claim refunds, tax losses and unabsorbed depreciation, tax credits, set-offs and/or adjustments relating to its income or transactions entered into by it by virtue of this Scheme with effect from Appointed Date. The taxes or duties paid by, for, or on behalf of the Demerged Undertaking relating to the period on or after the Appointed Date respectively shall be deemed to be the taxes or duties paid by the Resulting Company and shall be entitled to claim credit or refund for such taxes or duties.

11. CONDUCT OF BUSINESS UNTIL EFFECTIVE DATE

With effect from the Appointed Date to the Effective Date:

a. The Demerged Company in relation to the Demerged Undertaking undertakes to preserve and carry on the business, with reasonable diligence and business prudence and shall not undertake financial commitments or sell, transfer, alienate, charge, mortgage, or encumber or otherwise deal with or dispose of any undertaking or any part thereof save and except in each case:

- if the same is in its ordinary course of business as carried on by it as on the date of filing this Scheme with the NCLT; or
- if the same is expressly permitted by this Scheme; or
- if the prior written consent of the Board of Directors of the Resulting Company has been obtained.

b. The Demerged Company in relation to the Demerged Undertaking shall carry on and be deemed to have carried on all business and activities and shall stand possessed of all the assets, rights, title and interest for and on account of, and in trust for the Resulting Company.

c. All profits and cash accruing to or losses arising or incurred (including the effect of taxes if any thereon), by the Demerged Company in relation to the

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Demerged Undertaking, shall for all purposes, be treated as the profits/ cash, taxes or losses of the Resulting Company and shall be available to the Resulting Company for being disposed off in any manner as it thinks fit.

d. All loans raised and utilized and all liabilities, duties and obligations incurred or undertaken and all encumbrances/ charges/ mortgages/ security created by the Demerged Company over assets of the Demerged Undertaking in order to secure the said loans, debts and liabilities on or after the Appointed Date and prior to the Effective Date in respect of the Demerged Undertaking shall be deemed to have been raised, used, incurred or undertaken or created for and on behalf of Resulting Company and to the extent they are outstanding on the Effective Date, shall, upon the coming into effect of this Scheme and under the provisions of Sections 230 to 232 of the Act read with section 55 of the Act, without any further act, instrument or deed be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Resulting Company and shall become the loans and liabilities, duties and obligations of the Resulting Company which the Resulting Company shall meet, discharge and satisfy the same.

12. SAVING OF CONCLUDED TRANSACTION

The transfer and vesting of the assets, liabilities and obligations pertaining to the Demerged Undertaking to the Resulting Company and the continuance of all contracts or proceedings by or against the Resulting Company shall not affect any contracts or proceedings, already concluded by the Demerged Company, on or after the Appointed Date to the end and intent that the Resulting Company accepts and adopts all acts, deeds, matters and things done and/or executed by the Demerged Company in regard thereto as having been done or executed on behalf of the Resulting Company.

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13. CONSIDERATION / ISSUE OF SHARES

a. Upon the effectiveness of the Scheme, in consideration of the Demerger, the transfer and vesting of the Demerged Undertaking in the Resulting

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Company pursuant to this Scheme, the Resulting Company shall, without any further act or deed, issue and allot equity shares in the Resulting Company to each equity shareholder of the Demerged Company whose name is recorded in the register of members of the Demerged Company on the Record Date or to their respective heirs, executors, administrators or other legal representatives or the successors-in-title as the case may be, in the following ratio (the "Share Entitlement Ratio"):

" 271 (Two hundred and Seventy One) share of Resulting Company of INR 10/- each fully paid up **for every 1 (One) equity share of Demerged Company** of INR 10/- each fully paid up*" ('New Equity Shares') and*

The New Equity Shares to be issued pursuant to above Clause 13 (a) are collectively referred as **New Shares**.

b. The New Shares to be issued and allotted shall be subject to the terms and conditions set out in the Memorandum of Association and Articles of Association of the Resulting Company and other applicable provisions of the Act and Law. Such Equity Shares shall be issued and allotted by the Resulting Company in physical form to all the shareholders of the Demerged Company

c. The New Equity Shares shall be issued to the equity shareholders of the Demerged Company by the Resulting Company. Subject to the provisions of this Scheme, the New Equity Shares to be issued and allotted to the shareholders of the Demerged Company pursuant to Clause 13 (a) above, shall in all respects, rank pari passu with the existing equity shares of the Resulting Company in respect of dividend, bonus, right shares, voting rights and other corporate benefits.

d. In case any shareholder's holding in Demerged Company is such that the shareholder becomes entitled to a fraction of Equity Shares, such fraction shall be rounded off to the next higher integer.

e. The Resulting Company may increase/modify its authorized share capital, if necessary, to facilitate allotment of its New Shares to the shareholders of the

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Demerged Company as provided in above Clause .Subsequent to enhancement of authorized share capital of the Resulting Company, existing clause V of the Memorandum of Association of the Resulting Company shall, without any further act, instrument or deed, be stand altered, modified and amended pursuant to the applicable provisions of the Act as below:

Clause V of the Memorandum of Association of the Resulting Company:

"V. 'The Authorised Share Capital of the Company is Rs. 20,50,00,000 (Rupees Twenty Crore and Fifty Lakh Only) divided into 2,05,00,000 (Two Crore and Five Lakh) equity shares of Rs. 10/- (Rupees Ten Only)"

It is hereby clarified that for the purposes of Clause 13 (e) the consent of the shareholders of the Resulting Company to the Scheme shall be deemed to be sufficient for the purpose of effecting the above amendment and modification of authorized share capital, and no further resolutions or actions under the Act would be required to be separately passed or taken. However, the Resulting Company shall file the requisite documents with the relevant Registrar of Companies, for such modification of its authorized share capital, as aforesaid.

f. Upon the Scheme becoming effective, the issued, subscribed and paid-up share capital of the Resulting Company shall stand suitably increased/ modified consequent upon the issuance of New Shares in accordance with above. It is clarified that no approval under 62 of the Act or any other applicable provisions of the Act shall be required to be passed by the Resulting Company separately in a general meeting for issue of New Shares to the members of the Demerged Company under this Scheme. Further, shareholders of the Resulting Company approving this Scheme, it shall be deemed that they have given their consent to the issue of New Shares of the Resulting Company to the members of the Demerged Company in the Share Entitlement Ratio.

g. The issue and allotment of New Shares by the Resulting Company to the

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shareholders of the Demerged Company is an integral part of this Scheme and shall be deemed to have been carried out without any further act or deed and the approval of the shareholders of the Resulting Company to the Scheme shall be deemed to be due compliance of the provisions of the Act.

14. ACCOUNTING TREATMENT

Upon the Scheme becoming effective, the Demerged Company and Resulting Company shall account for Demerger of the Demerged Undertaking in their books of account with effect from the Appointed Date in accordance with the applicable Accounting Standards specified under section 133 of the Act read with the Companies (Accounting Standards) Rules, 2021 or such other accounting principles as may be applicable or prescribed under the Act:

a. **In the books of the Resulting Company**

i. The Resulting Company, as on the Appointed Date, shall record the assets, liabilities, reserves, and surplus (including but not limited to profit and loss) pertaining to the Demerged Undertaking, transferred to and vested in it pursuant to this Scheme at their respective carrying values, as appearing in the books of the Demerged Company.

ii. The Resulting Company shall credit its share capital account with the aggregate face value of the New Shares issued and allotted to the relevant shareholders of the Demerged Company as per Clause 13 above.

iii. The inter-se Receivables or Payables or loans and advances, if any, between Resulting Company and the Demerged Company in relation to the Demerged Undertaking appearing in the books of accounts of the respective companies shall stand cancelled.

iv. The difference, if any, between the carrying value of assets and liabilities recorded as per Clause 14 (a) (i) above as reduced by the share capital issued as per Clause 14 (a) (ii) above after giving effect to inter-company balances as per Clause 14 (a) (iii) above shall be recorded as capital reserve (or capital reserve under scheme of arrangement) and will be presented separately from other type of equity with disclosure of its

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nature and purpose in the notes. In case the above-mentioned capital reserve on arrangement is debit, the said amount would be shown as Goodwill, in the books of the Resulting Company.

v. In case of any difference in the accounting policy and applicable accounting GAAP between the Resulting Company and the Industrial Constructions Undertaking of the Demerged Company, the impact of the same will be quantified and adjusted in the capital reserves (as described in Clause iv above) of the Resulting Company to ensure that the financial statements of the Resulting Company reflect the financial position on the basis of consistent accounting policy.

b. **In the books of Demerged Company**

i. The book values of the assets, liabilities and reserves and surplus (including but not limited to profit and loss) of the Demerged Company relating to the Demerged Undertaking being transferred to the Resulting Company shall be reduced from the book values of the assets liabilities and reserves and surplus (including but not limited to profit and loss) appearing in the books of account of the Demerged Company as on the Appointed Date.

ii. The net asset/ liability relating to the Demerged Undertaking pursuant to 14 (b) (i) above shall be adjusted in the General reserve/ Profit and Loss account.

15. REMAINING BUSINESS OF THE DEMERGED COMPANY

a. The Remaining Business of the Demerged Company and all assets, liabilities, incentives, rights and obligations pertaining thereto shall continue to be vested in and managed by the Demerged Company in the manner as provided below.

b. All legal and other proceedings by or against the Demerged Company under any statute, whether pending on the Appointed Date or which may be instituted in future, whether or not in respect of any matter arising before the Effective date and relating to the Remaining Business of the Demerged Company (including those relating to any property, right, power, liability,

Smp Constructions Pvt. Ltd. Director

For Smp Infrastructure Pvt. Ltd. Director

obligation or duty, of the Demerged Company in respect of the Remaining Business of the Demerged Company) shall be continued and enforced by or against the Demerged Company.

c. With effect from the Appointed Date:

- The Demerged Company shall be deemed to have been carrying on and to be carrying on all business and activities relating to the Remaining Business of the Demerged Company for and on its own behalf;
- The Demerged Company may enter into such contracts as the Demerged Company may deem necessary in respect of the Remaining Business;
- All profits accruing to the Demerged Company thereon or losses arising or incurred by it relating to the Remaining Business of the Demerged Company shall, for all purposes, be treated as the profits, or losses, as the case may be, of the Demerged Company;
- All assets and properties acquired by the Demerged Company in relation to the Remaining Business on and after the Appointed Date shall belong to and continue to remain vested in the Demerged Company; and
- All liabilities (including contingent liabilities) loans, debts (whether secured or unsecured) raised or incurred, duties and obligations of every kind, nature and description whatsoever and howsoever arising or accruing in relation to the Remaining Business shall belong to and continue to remain vested in the Demerged Company.

PART III

GENERAL TERMS AND CONDITIONS

16. APPLICATION TO NCLT

The Demerged Company and the Resulting Company shall with all reasonable effort dispatch, make necessary joint applications/petitions, under Sections 230 to 232 and other applicable provisions of the Act to the NCLT for sanctioning this Scheme.

17. MODIFICATIONS/ AMENDMENTS TO THE SCHEME

a. The Demerged Company and the Resulting Company by their respective Boards may assent to any modifications/amendments to the Scheme or to

Smp Constructions Pvt. Ltd. Director

For Smp Infrastructure Pvt. Ltd. Director

any conditions or limitations that the NCLT and/or any other authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by them (i.e. the Board). The Demerged Company's Board and the Resulting Company's Board be and is hereby authorized to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith and to do all acts, deeds, matters and things and take all such steps as may be necessary, desirable or expedient for putting the Scheme into effect.

b. In the event of any of the conditions imposed by the NCLT or other authorities, which the Demerged Company and/or the Resulting Company may find unacceptable for any reason, in whole or in part, then the Demerged Company and/or the Resulting Company are at liberty to withdraw the Scheme.

18. SCHEME CONDITIONAL ON APPROVALS/ SANCTIONS

The Scheme is conditional upon and subject to:

a. The sanction of the Scheme by the NCLT under Sections 230 to 232 of the Act in favour of Demerged Company and the Resulting Company, as the case may be, under the said provisions and to the necessary order sanctioning the Scheme being obtained.

b. The requisite consent, approval or permission of any other statutory or regulatory authority, which by law may be necessary for the implementation of this Scheme.

c. Certified copy of the order of the NCLT sanctioning the Scheme being filed with the Registrar of Companies, Gujarat collectively by Demerged Company and the Resulting Company.

19. EFFECT OF NON-RECEIPT OF APPROVALS

a. In the event any of the said approvals or sanctions referred to in Clause 18 above not being obtained or conditions enumerated in the Scheme not

Smp Constructions Pvt. Ltd.
Director

For Smp Infrastructure Pvt. Ltd.
Director

being complied with, or for any other reason, the Scheme cannot be implemented, the Boards of Directors of the Demerged Company, the and the Resulting Company shall by mutual agreement waive such conditions as they consider appropriate to give effect, as far as possible, to this Scheme and failing such mutual agreement, the Scheme shall become null and void and shall stand revoked, cancelled and be of no effect and each party shall bear and pay their respective costs, charges and expenses in connection with the Scheme.

b. The Board of Directors of the Demerged Company and the Resulting Company shall be entitled to revoke, cancel and declare the Scheme of no effect if they are of the view that the coming into effect of the Scheme could have adverse implications on the Demerged Company and/or the Resulting Company.

20. BINDING EFFECT

Upon the Scheme becoming effective, the same shall be binding on the Demerged Company and the Resulting Company and all concerned parties without any further act, deed, matter or thing.

21. SEVERABILITY

If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Board of directors of the Companies, affect the validity or implementation of the other parts and/ or provisions of this Scheme.

22. COSTS, CHARGES AND EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed) of the Demerged Company and the Resulting Company arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne by both the companies in the proportion of the Value of Net Assets transferred.

For Smp Infrastructure Pvt. Ltd. **Smp Constructions Pvt. Ltd.**

Director **********

Director

Annexure "B"

Smp Constructions Pvt. Ltd. - GUJ
168, Phase -II, GIDC,
Bharuch. (Gujarat)
CIN: U46201GJ2002PTC041739

Schedule of Assets

First part : Short description of the freehold property of the transferor company

Particulars	LOCATION	PROPERTY DISCRIPTION	REMARKS -2
Flat No. 302 at Ashoka Residecy Vadodara	Surve No. 1035 Block No. 263 Construction AREA 1000 Sq.ft Flat No. 302 at Ashoka Residecy Vadodara	IMMOVABLE PROPERTY	FREE HOLD PROPERTY
Total			

Second part : Short description of the leasehold property of the transferor company

Particulars	LOCATION	PROPERTY DISCRIPTION	REMARKS -2
Building	At P- 156, GIDC Phase -II Bholav - Bharuch -392015 servey NO 53/4 and 53/6 AREA 6000 SQ. MTR. & Constrction area 15000 sq. ft	IMMOVABLE PROPERTY	LEASE HOLD PROPERTY
Lease Hold Land	At P- 156, GIDC Phase -II Bholav - Bharuch -392015 servey NO 53/4 and 53/6 AREA 6000 SQ. MTR. & Constrction area 15000 sq. ft	IMMOVABLE PROPERTY	LEASE HOLD PROPERTY
Total			

Third part : Short description of all stocks, shares, debentures and other charges in action of the transferor company

Particulars	LOCATION
Furniture & Fixture	
Control Panel	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Electric Fittings- GIDC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Electrification	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Furniture & Fixture -GIDC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Furniture & Fixtures	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Safe (Locker)- GIDC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Total of Furniture & Fixture	

Temporary structures	
Bunk House (31 Nos)	
Mobile Toilet Van -01	AT- BHARUCH SITE
M.S. Container (10 Nos)	
Total	

Office Equipments	
Air Conditioner - GIDC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
LCD at GIDC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Pedastal Fan	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Telephone Instruments -GIDC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Air Conditioner	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Amplifier & MIC	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Biometric Attendance System	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Blurstar Water Dispensar -BDR M1	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Conference Sound Sysyem	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Refrigerator	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Television	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Water Cooler	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Water Purifier - 04 (RO System)	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Water Purifier - 05(RO System)	At P- 156, GIDC Phase -II Bholav - Bharuch -392015
Xerox Machine	At P- 156, GIDC Phase -II Bholav - Bharuch -392015

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Smp Constructions Pvt. Ltd.
Director

Plant & Machinery

Computer & Peripherials-GIDC	AT- BHARUCH SITE
D. G. Sets	AT- BHARUCH SITE
Ajax Argo-4000-11 (GJ/16/BS-1959)	AT- BHARUCH SITE
Ajax Argo-4000-12 (GJ/16/BS-1634)	AT- BHARUCH SITE
Auto Level with Stand - 08 MP	AT- BHARUCH SITE
Auto Level with Stand - 09 AP	AT- BHARUCH SITE
Auto Level with Stand - 10 Mp	AT- BHARUCH SITE
Auto Level with Stand - 11 ADM (AP)	AT- BHARUCH SITE
Auto Level with Stand - 12 JSDN	AT- BHARUCH SITE
Auto Level with Stand -13 (S.S. Sales)	AT- BHARUCH SITE
Auto Level with Stand - 14 BV	AT- BHARUCH SITE
Auto Level with Stand -15 (S.S. Sales)	AT- BHARUCH SITE
Auto Level with Stand -16 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -17 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -18 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -19 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -20 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -21 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -22 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -23 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -24 (Skipper Tech.)	AT- BHARUCH SITE
Auto Level with Stand -25 (Sankon)	AT- BHARUCH SITE
Auto Level with Stand -26 (Sankon)	AT- BHARUCH SITE
Auto Level with Stand -27 (Sankon)	AT- BHARUCH SITE
Auto Level with Stand -28 (Sankon)	AT- BHARUCH SITE
Auto Level with Stand -28 (Sankon)	AT- BHARUCH SITE
Bar Bending Machine - 05	AT- BHARUCH SITE
Bar Bending Machine - 06	AT- BHARUCH SITE
Bar Bending Machine - 07	AT- BHARUCH SITE
Bar Bending Machine - 08	AT- BHARUCH SITE
Bar Bending Machine - 09	AT- BHARUCH SITE
Bar Bending Machine - 10	AT- BHARUCH SITE
Bar Bending Machine - 11	AT- BHARUCH SITE
Bar Bending Machine - 12	AT- BHARUCH SITE
Bar Bending Machine - 13	AT- BHARUCH SITE
Bar Bending Machine - 14	AT- BHARUCH SITE
Bar Bending Machine - 15	AT- BHARUCH SITE
Bar Bending Machine - 16	AT- BHARUCH SITE
Bar Bending Machine - 17	AT- BHARUCH SITE
Bar Bending Machine - 18	AT- BHARUCH SITE
Bar Bending Machine - 19	AT- BHARUCH SITE
Bar Bending Machine - 20	AT- BHARUCH SITE
Bar Bending Machine - 21	AT- BHARUCH SITE
Bar Bending Machine - 22	AT- BHARUCH SITE
Bar Bending Machine - 23	AT- BHARUCH SITE
Bar Bending Machine - 24	AT- BHARUCH SITE
Bar Bending Machine - 25	AT- BHARUCH SITE
Bar Bending Machine - 26	AT- BHARUCH SITE
Bar Bending Machine - 27	AT- BHARUCH SITE
Bar Bending Machine - 28	AT- BHARUCH SITE
Bar Bending Machine - 29	AT- BHARUCH SITE
Bar Cutting Machine - 05	AT- BHARUCH SITE
Bar Cutting Machine - 08	AT- BHARUCH SITE
Bar Cutting Machine - 09	AT- BHARUCH SITE
Bar Cutting Machine - 10	AT- BHARUCH SITE
Bar Cutting Machine - 11	AT- BHARUCH SITE
Bar Cutting Machine - 12	AT- BHARUCH SITE
Bar Cutting Machine - 13	AT- BHARUCH SITE
Bar Cutting Machine - 14	AT- BHARUCH SITE
Bar Cutting Machine - 15	AT- BHARUCH SITE
Bar Cutting Machine - 16	AT- BHARUCH SITE
Bar Cutting Machine - 17	AT- BHARUCH SITE
Bar Cutting Machine - 18	AT- BHARUCH SITE
Bar Cutting Machine - 19	AT- BHARUCH SITE
Bar Cutting Machine - 20	AT- BHARUCH SITE
Bar Cutting Machine - 21	AT- BHARUCH SITE
Bar Cutting Machine - 22	AT- BHARUCH SITE
Bar Cutting Machine - 23	AT- BHARUCH SITE
Bar Cutting Machine - 24	AT- BHARUCH SITE
Bar Cutting Machine - 25	AT- BHARUCH SITE
Bar Cutting Machine - 26	AT- BHARUCH SITE



Smp Constructions Pvt. Ltd.

Director

Bar Cutting Machine - 27	AT- BHARUCH SITE
Bar Cutting Machine - 28	AT- BHARUCH SITE
Bar Cutting Machine - 29	AT- BHARUCH SITE
Batching Plant -14 (Nilkanth Engg.)	AT- BHARUCH SITE
Batching Plant -15 (Nilkanth Engg.)	AT- BHARUCH SITE
Batching Plant - 19 (Schwing Stetter)	AT- BHARUCH SITE
Batching Plant - 20 (Nilkanth Engg.)	AT- BHARUCH SITE
Batching Plant Silo -02 (Umiya Engineers)	AT- BHARUCH SITE
Batching Plant Silo -03 (Nilkanth M/c Tools)	AT- BHARUCH SITE
Batching Plant Silo -04 (Nilkanth M/c Tools)	AT- BHARUCH SITE
Batching Plant Silo - 09 (Indotex Equipments	AT- BHARUCH SITE
Batching Plant Silo - 10 (Indotex Equipments	AT- BHARUCH SITE
Batching Plant Silo - 11 (Indotex Equipments	AT- BHARUCH SITE
Batching Plant Silo - 12 (Indotex Equipments	AT- BHARUCH SITE
Compactor with Engine -2 (Shwet Ass.)	AT- BHARUCH SITE
Compactor with Engine -3 (Shwet Ass.)	AT- BHARUCH SITE
Compactor with Engine -5 (Shwet Ass.)	AT- BHARUCH SITE
Compression Testing Machine -2	AT- BHARUCH SITE
Computer	AT- BHARUCH SITE
Concrete Boom Pump & Acces. - 03 (Putzmei	AT- BHARUCH SITE
Concrete Boom Pump & Acces. - 04 (Putzmei	AT- BHARUCH SITE
Concrete Breaking M/c -17	AT- BHARUCH SITE
Concrete Breaking M/c -18	AT- BHARUCH SITE
Concrete Breaking M/c(Bosch) -15	AT- BHARUCH SITE
Concrete Breaking M/c(Bosch) -16	AT- BHARUCH SITE
Concrete Breaking M/c(Bosch) -19	AT- BHARUCH SITE
Concrete Breaking M/c(Bosch) -20	AT- BHARUCH SITE
Concrete Breaking M/c(Bosch) -21	AT- BHARUCH SITE
Concrete Breaking M/c. Hilti - 10	AT- BHARUCH SITE
Concrete Breaking M/c. Hilti - 8	AT- BHARUCH SITE
Concrete Breaking M/c. (Makita) - 11	AT- BHARUCH SITE
Concrete Breaking M/c. (Orbit) - 12	AT- BHARUCH SITE
Concrete Pump - 03	AT- BHARUCH SITE
Concrete Pump - 07 (Aquarious Engg.)	AT- BHARUCH SITE
Concrete Pump -12(Schwing Stetter)	AT- BHARUCH SITE
Cube Testing Machine -1 (Shwet Ass.)	AT- BHARUCH SITE
Cube Testing Machine -2 (Shwet Ass.)	AT- BHARUCH SITE
Cube Testing Machine -3 (S.S Inst.)	AT- BHARUCH SITE
Cube Testing Machine -4 (S.S Inst.)	AT- BHARUCH SITE
Electronic Total Station-01 (Skipper Tech.)	AT- BHARUCH SITE
Electronic Total Station-02 (Skipper Tech.)	AT- BHARUCH SITE
Electronic Total Station-03 (Skipper Tech.)	AT- BHARUCH SITE
Electronic Total Station-04 (Skipper Tech.)	AT- BHARUCH SITE
Electronic Total Station-05 (Hexagon Geo)	AT- BHARUCH SITE
Electronic Weighbridge	AT- BHARUCH SITE
Electronic Weighbridge -2(Endeavour)	AT- BHARUCH SITE
Electronic Weighbridge -3(Endeavour)	AT- BHARUCH SITE
Electronic Weighbridge -4(Endeavour)	AT- BHARUCH SITE
EX-110 Tata Hitachi - 2	AT- BHARUCH SITE
H. Frame	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-1606)	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-1699)	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-1940)	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-2014)	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-2452)	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-2550)	AT- BHARUCH SITE
JCB 3DX (GJ/16/BS-3224)	AT- BHARUCH SITE
Laptop -02 (Samsung Galaxy Tab S7)	AT- BHARUCH SITE
Laptop - Asus -01	AT- BHARUCH SITE
Laptop - Asus -02	AT- BHARUCH SITE
Laptop Dell -06	AT- BHARUCH SITE
Laptop Dell - 07	AT- BHARUCH SITE
Laptop (Galaxy Tablet)	AT- BHARUCH SITE
Laptop - HP	AT- BHARUCH SITE
Laptop - HP - 10	AT- BHARUCH SITE
Laptop - HP- 11	AT- BHARUCH SITE
Laptop - HP- 12	AT- BHARUCH SITE
Laptop -HP -13	AT- BHARUCH SITE
Laptop -HP -14	AT- BHARUCH SITE
Laptop -HP -15	AT- BHARUCH SITE
Laptop - HP - 2	AT- BHARUCH SITE
Laptop - HP - 5	AT- BHARUCH SITE
Laptop - HP - 6	AT- BHARUCH SITE

Smp Constructions Pvt. Ltd.

Director

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Laptop - HP - 8	AT- BHARUCH SITE
Laptop - HP - 9	AT- BHARUCH SITE
Laptop Lenovo - 04	AT- BHARUCH SITE
Laptop Lenovo - 05	AT- BHARUCH SITE
Laptop -Lenovo Yoga -01	AT- BHARUCH SITE
Laptop -Lenovo Yoga -02	AT- BHARUCH SITE
Lift "Tower Hoist" (JK Mini Crane 300 M-Op)	AT- BHARUCH SITE
Lift "Tower Hoist" (JK Mini Crane 300 M-Op)	AT- BHARUCH SITE
Lift "tower Hoist" Model EMSP-800 - 01	AT- BHARUCH SITE
Lift Tower Hoist -190 Mtr. -01(Esquire)	AT- BHARUCH SITE
Lift Tower Hoist -30 Mtr. -02(Esquire)	AT- BHARUCH SITE
Lift Tower Hoist -30 Mtr. -03(Esquire)	AT- BHARUCH SITE
Lift Tower Hoist -30 Mtr. -04(Esquire)	AT- BHARUCH SITE
Lift Winch 100 X 300 - 02	AT- BHARUCH SITE
Lift Winch 100 X 300 - 03	AT- BHARUCH SITE
Loader - 02	AT- BHARUCH SITE
Loader - 03	AT- BHARUCH SITE
Loader - 04	AT- BHARUCH SITE
Loader - 07 (GJ/16/BS-2680)	AT- BHARUCH SITE
Loader - 08 (GJ/16/BS-3458)	AT- BHARUCH SITE
Loader - 09 (GJ/16/BS-3534)	AT- BHARUCH SITE
Loader - 10 (GJ/16/BS-4035)	AT- BHARUCH SITE
Mobile Phones	AT- BHARUCH SITE
Mobile Tower Crane SP 453 - 01 (GJ 16 AF 8	AT- BHARUCH SITE
Mobile Tower Crane SP 453 - 02 (GJ 16 AF 81	AT- BHARUCH SITE
Mobile Tower Crane SP 453 - 03 (GJ/16/BS-3	AT- BHARUCH SITE
Mobile Tower Crane SP-453 - 04 (GJ/16/BS-4	AT- BHARUCH SITE
Mobile Water Tanker - 01 (GJ 16 Y 8248)	AT- BHARUCH SITE
Mobile Water Tanker - 02 (GJ 16 Y 8247)	AT- BHARUCH SITE
Mobile Water Tanker - 03 (GJ 16 Y 8322)	AT- BHARUCH SITE
Mobile Water Tanker - 04 (GJ 16 Y 8321)	AT- BHARUCH SITE
Movable Lighting System - 01 (2 No)	AT- BHARUCH SITE
Movable Lighting System - 03 (02 No)	AT- BHARUCH SITE
Movable Lighting System - 04	AT- BHARUCH SITE
Payroll Software	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -22	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -23	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -24	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -25	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -26	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -27	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -28	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -29	AT- BHARUCH SITE
Printer - Brother DCP -L2520 D -30	AT- BHARUCH SITE
Printer - Brother DCP -L2541dw -21	AT- BHARUCH SITE
Printer - Brother HL-L2321 D -13	AT- BHARUCH SITE
Printer - Brother HL-L2321 D -14	AT- BHARUCH SITE
Printer Epson L -210 01	AT- BHARUCH SITE
Printer- Epson Lx 300 + II	AT- BHARUCH SITE
Printer - Epson Lx 300+II - 03	AT- BHARUCH SITE
Printer Epson Lx-310 -05	AT- BHARUCH SITE
Printer Epson Lx-310 -06	AT- BHARUCH SITE
Printer - Epson Workforce M200 -11	AT- BHARUCH SITE
Printer Espon Lx-310 -04	AT- BHARUCH SITE
Printer HP - 1136 MP	AT- BHARUCH SITE
Printer -HP Dj 2520 Hc	AT- BHARUCH SITE
Printer - HP Laserjet 1020 + -09	AT- BHARUCH SITE
Printer - HP Laserjet M1005 -08	AT- BHARUCH SITE
Printer - HP Laserjet M1005 -10	AT- BHARUCH SITE
Printer - HP Laserjet M1005 -15	AT- BHARUCH SITE
Printer - HP Laserjet Pro -12	AT- BHARUCH SITE
Printer - HP Lj Pro M126nw -16	AT- BHARUCH SITE
Printer - HP Lj Pro M126nw -17	AT- BHARUCH SITE
Printer - HP Lj Pro M126nw -18	AT- BHARUCH SITE
Printer - HP Lj Pro M126nw -19	AT- BHARUCH SITE
Printer - HP Lj Pro M126nw -20	AT- BHARUCH SITE
Printer - TVS Msp 240 Dmp -15	AT- BHARUCH SITE
Roof Top Solar Systems	AT- BHARUCH SITE
Scafolding	AT- BHARUCH SITE
Shuttering Materials	AT- BHARUCH SITE
Tamping Rammer (Shwet Ass.)	AT- BHARUCH SITE
Total Station South	AT- BHARUCH SITE
Tower Crane - 1	AT- BHARUCH SITE



Smp Constructions Pvt. Ltd.

Director

Tower Crane - 2	AT- BHARUCH SITE
Tower Crane - 3	AT- BHARUCH SITE
Tower Crane - 4	AT- BHARUCH SITE
Tractor - 04 (GJ 16 R 8342)	AT- BHARUCH SITE
Tractor - 05 (GJ 16 R 8343)	AT- BHARUCH SITE
Tractor - 08 (GJ 16 R 9065)	AT- BHARUCH SITE
Tractor - 11 (GJ 16 R 9370)	AT- BHARUCH SITE
Tractor - 13 (GJ 12 K 4159)	AT- BHARUCH SITE
Tractor - 15 (GJ 16 AF 155)	AT- BHARUCH SITE
Tractor - 18 (GJ 16 AF 1653)	AT- BHARUCH SITE
Tractor - 19 (GJ 16 AF 1654)	AT- BHARUCH SITE
Tractor - 21 (GJ/16/CN-5590)	AT- BHARUCH SITE
Tractor - 22 (GJ/16/CN-5726)	AT- BHARUCH SITE
Tractor - 23 (GJ/16/CS-6523)	AT- BHARUCH SITE
Tractor - 24 (GJ/16/CS-6568)	AT- BHARUCH SITE
Tractor - 25 (GJ/16/CS-6685)	AT- BHARUCH SITE
Tractor - 26 (GJ/16/CS-6652)	AT- BHARUCH SITE
Tractor - 27 (GJ/16/CS-9552)	AT- BHARUCH SITE
Tractor - 28 (GJ/16/DC-1715)	AT- BHARUCH SITE
Tractor - 29 (GJ-16DG-1888)	AT- BHARUCH SITE
Tractor - 30 (GJ-16DG-1925)	AT- BHARUCH SITE
Tractor Trailor - 01 (GJ 16 V 8658)	AT- BHARUCH SITE
Trailor - 01 (GJ 10 V 8786)	AT- BHARUCH SITE
Trailor - 03 (GJ 16 V 8829)	AT- BHARUCH SITE
Trailor - 04 (GJ 16 V 8874)	AT- BHARUCH SITE
Trailor - 05 (GJ 16 X 0017)	AT- BHARUCH SITE
Trailor - 07 (GJ 16 X 0073)	AT- BHARUCH SITE
Trailor - 08 (GJ 16 X 0074)	AT- BHARUCH SITE
Trailor - 10 (GJ 16 X 280)	AT- BHARUCH SITE
Trailor - 11 (GJ 16 X 382)	AT- BHARUCH SITE
Trailor - 13 (GJ-16-AV-2636)	AT- BHARUCH SITE
Trailor - 14 (GJ-16-AV-3182)	AT- BHARUCH SITE
Trailor - 15 (GJ/16/AV-4335)	AT- BHARUCH SITE
Trailor - 16 (GJ-16-AV-4090)	AT- BHARUCH SITE
Trailor - 17 (GJ-16-AV-4103)	AT- BHARUCH SITE
Trailor - 18 (GJ-16AV-8026)	AT- BHARUCH SITE
Trailor - 19 (GJ-16AV-8435)	AT- BHARUCH SITE
Transit Mixture - 06 (GJ 16 AF 8057)	AT- BHARUCH SITE
Transit Mixture - 07 (GJ 16 AF 8061)	AT- BHARUCH SITE
Transit Mixture - 08 (GJ/16/BS-1258)	AT- BHARUCH SITE
Transit Mixture - 09 (GJ/16/BS-1362)	AT- BHARUCH SITE
Transit Mixture - 10 (GJ 16 BS 1838)	AT- BHARUCH SITE
Transit Mixture - 11 (GJ 16 BS 1746)	AT- BHARUCH SITE
Transit Mixture - 14 (GJ 16 BS 2646)	AT- BHARUCH SITE
Transit Mixture - 15 (GJ 16 BS 2687)	AT- BHARUCH SITE
Transit Mixture - 18 (GJ 16 BS 3328)	AT- BHARUCH SITE
TRUCK - GJ 16 BS 2231 (Boom Pump-03)	AT- BHARUCH SITE
TRUCK - GJ 16 BS 2583 (Boom Pump-04)	AT- BHARUCH SITE
Truck-Trailor NL 01G 7337 (GJ-16-AV-3528)	AT- BHARUCH SITE
Vibrator Machine - 38 (Tara Mech.)	AT- BHARUCH SITE
Vibrator Machine - 39 (Tara Mech.)	AT- BHARUCH SITE
Vibrator Machine - 40 (Tara Mech.)	AT- BHARUCH SITE
Vibratory Roller - 06 (Om Enterprise)	AT- BHARUCH SITE
Vibratory Roller - 07 (Om Enterprise)	AT- BHARUCH SITE
Vibratory Roller - 08 (Om Enterprise)	AT- BHARUCH SITE
Vibratory Roller - 09 (Om Enterprise)	AT- BHARUCH SITE
Vibratory Roller - 10 (Dynemix India)	AT- BHARUCH SITE
Vibratory Roller - 11 (Om Enterprise)	AT- BHARUCH SITE
Vibratory Roller - 12 (Om Enterprise)	AT- BHARUCH SITE
Vibratory Soil Compactor (GJ/16/BS-1649)(Y	AT- BHARUCH SITE
Water Tanker - 03 (GJ 16 F 222)	AT- BHARUCH SITE
Water Tanker - 04 (GJ 16 V 8659)	AT- BHARUCH SITE
Water Tanker - 08 (GJ/16/AV-0621)	AT- BHARUCH SITE
Water Tanker - 09 (GJ/16/AU-9628)	AT- BHARUCH SITE
Welding M/c with D.G.Set - 1	AT- BHARUCH SITE

Vehicles

Bolero Camper - 19 (GJ/16/AU-2419)	AT- BHARUCH SITE
Bolero Camper - 20 (GJ/16/AU-3476)	AT- BHARUCH SITE
Bolero Camper - 21 (GJ/16/AU-3943)	AT- BHARUCH SITE
Bolero Camper - 24 (GJ/16/AU-7912)	AT- BHARUCH SITE
Bolero Camper -27 (GJ/16/AV-3135)	AT- BHARUCH SITE

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Bolero Camper -28 (GJ/16/AV-3141)	AT- BHARUCH SITE
Bolero Deluxe - 02 (GJ 16 AP 0279)	AT- BHARUCH SITE
Duster -RXZ (GJ/16/CB-6330)	AT- BHARUCH SITE
EECO (GJ/16/CB-7992)	AT- BHARUCH SITE
EECO (GJ/16/CB-9104)	AT- BHARUCH SITE
EECO (GJ/16/CH-6324)	AT- BHARUCH SITE
EECO (GJ/16/CH-6352)	AT- BHARUCH SITE
EECO (GJ/16/CN-0767)	AT- BHARUCH SITE
EECO (GJ/16/CN-5559)	AT- BHARUCH SITE
EECO (GJ/16/DC-1987)	AT- BHARUCH SITE
EECO (GJ/16/DG-5845)	AT- BHARUCH SITE
Kia Seltos (GJ/16/CS/6993)	AT- BHARUCH SITE
Motor Cycle - 15 (GJ 16 AE 126)	AT- BHARUCH SITE
Scooty Pep Plus (GJ/16/CQ-9959)	AT- BHARUCH SITE
SKODA (GJ/16/CH-9396)	AT- BHARUCH SITE
Splender - 06 (GJ 16 AK 1835)	AT- BHARUCH SITE
Splender - 11 (GJ 16 AK 2057)	AT- BHARUCH SITE
Splender - 12 (GJ-16 AR - 844)	AT- BHARUCH SITE
Splender (Super) (GJ 16 CP 1372)	AT- BHARUCH SITE
Tata Ace - 04 (GJ-16-AV-2207)	AT- BHARUCH SITE
Tata Tempo (GJ 16 X 6060)	AT- BHARUCH SITE
Tempo 709 (GJ 16 V 4660)	AT- BHARUCH SITE
Toyota Fortuner (GJ/16/CH-6993)	AT- BHARUCH SITE
Trax Cruiser Toofan -02 (GJ/16/CS-7290)	AT- BHARUCH SITE
Trax Cruiser Toofan -03 (GJ/16/CS-8511)	AT- BHARUCH SITE
Trax Toofan -01 (GJ 16 CN 8996)	AT- BHARUCH SITE
Wagon R - 03 (GJ 16 AJ 0288)	AT- BHARUCH SITE
Wagon R - 06 (GJ/16/CB-7449)	AT- BHARUCH SITE

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